

****March 25, 2025****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed, in February 2025, an investigation into the operator NTT DATA ROMÂNIA S.A. and found a violation of Article 32 paragraph (1) letters b) and d), paragraph (2), and Article 33 paragraph (1) of Regulation (EU) 2016/679.

As such, the operator was sanctioned with:

- a fine in the amount of 124,432.50 lei, equivalent to 25,000 euros, for violating the provisions of Article 32 paragraph (1) letters b) and d), paragraph (2) of Regulation (EU) 2016/679.
- a warning for violating the provisions of Article 33 paragraph (1) of Regulation (EU) 2016/679.

The investigation was initiated following the notification by the operator NTT DATA ROMÂNIA S.A. of a personal data security breach, according to the provisions of Article 33 of Regulation (EU) 2016/679. During the investigation, it was found that, as a result of a cyber attack, the operator's IT infrastructure was accessed, and thus personal data was extracted without authorization.

As such, it was determined that the operator did not implement appropriate technical and organizational measures and did not conduct testing, evaluation, and periodic assessment of the effectiveness of the technical and organizational measures to ensure the security of data processing, including the ability to ensure the confidentiality, integrity, availability, and continuous resilience of processing systems and services.

In this context, we specify that this situation led to unauthorized access to personal data of a significant number of data subjects, such as: first name, last name, signature, address, phone number, email address, gender, nationality, copies of identity documents, marriage certificates, passports, birth certificates, employment information, and financial information: invoices, contracts, budget plans, educational information (records of training courses, participation in training courses, CVs, diplomas), sensitive health data of employees.

Furthermore, during the investigation, it was found that the operator did not notify the Supervisory Authority within 72 hours from the time it became aware of the personal data security breach, thus violating the provisions of Article 33 paragraph (1) of the GDPR.

The operator has paid the established contravention fine.

****Legal and Communication Department****

****N.A.S.P.D.C.P****